

26SMCV01622 26SMCV01622

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Case Number: 26SMCV01622 Hearing Date: August 28, 2026 Dept: M

CASE NAME: Handal v. L.A.

Wellness Center

CASE NO.: 26SMCV01622

MOTION: Motion

to Compel Further Discovery Responses

HEARING DATE: 8/28/2026

Legal

Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." CCP § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to

restrict the frequency or extent of use of an authorized discovery method.

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP, § 2031.310(c).) A motion to compel further responses must set forth specific facts showing “good cause” justifying the discovery sought by the demand and must be accompanied by a declaration showing a “reasonable and good faith attempt” to resolve the issues outside of court. (CCP §§ 2016.040, 2031.310(b).) Absent a claim of privilege or attorney work product, the moving party meets its burden of showing good cause by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) If the moving party has shown good cause for the RPDs, the burden is on the objecting party to justify the objections. (Ibid.)

Analysis

Plaintiff John B. Handal moves to compel Defendant L.A. Wellness Center (A/K/A Los Angeles Wellness Center Inc.) to serve further, verified, code-compliant responses to Plaintiff's Request for Production of Documents, Set One, Nos. 1 through 25, and to produce all responsive, non-privileged documents, video, and electronically stored information responsive thereto.

Plaintiff

shows good cause for some of the sought discovery, including as to RPD nos. 3, 4, 7, 9-14, 16-25. This is an unlawful detainer action based on a 30-day notice. (Aba Decl., ¶13.) The requests seek documents and electronically stored information relevant to this action, including surveillance video, security guard and receptionist records, communications concerning service of process, communications with Defendant's registered agent for service of process, and records concerning the retention, deletion, or overwriting of surveillance video. (Id., ¶ 5.) The 30-day notice apparently occurred on February 18, 2026, according to the discovery itself and prior filings. While Defendant has yet to answer, Defendant challenged the propriety of the service of the 30-day notice via demurrer. Defendant argued that the alleged service was not via any method authorized by law. Additionally, Plaintiff will need to prove that it complied with the service provisions in the commercial lease as part of its prima facie case. The requested documents and electronically stored information will

confirm whether service was properly effectuated on February 18, 2026, pursuant to the lease. However, Plaintiff does not explain why there is good cause for videos or records dated March 19, 2026, which is requested in nos. 1-2, 5-6, 8 and 15. The Court identifies nothing on the record suggesting any relevant service occurred on this date and Plaintiff fails to justify this request.

Defendant provided objections-only responses to nos. 1 through 25 as follows:

"In addition to the above general objections incorporated by reference herein, Responding Party objects to each and every Request for Production on the grounds that the requests are unreasonably cumulative, duplicative, and unduly burdensome because they seek the same documents and information Plaintiff previously requested in the related action entitled John Handal v. L.A. Wellness Center, LASC Case No. 26SMCV01314, where service of process and the validity of the default judgment remain at issue in Defendant's pending motion to vacate. Plaintiff served these identical requests in that action on or about June 16, 2026, seeking documents concerning those same disputed service issues. By contrast, service of process is not at issue in this action, where Responding Party has appeared. Accordingly, the requests do not seek information relevant to the subject matter of this action or reasonably calculated to lead to the discovery of information admissible in this action, and are outside the permissible scope of discovery. (CCP §§ 2017.010, 2019.030.)"

Defendant also incorporated preliminary statements and general objections, including objections based on relevance, overbreadth, burden, vagueness, privilege, privacy, duplicative discovery, and documents not in Defendant's possession, custody, or control. Defendant further stated that it will not produce and/or provide a privilege log for any document generated subsequent to the filing of the Plaintiff's initial Complaint.

Defendant has the burden of justifying their blanket, boilerplate objections at the hearing or in a written opposition. (CRC Rule 3.1347.) If Defendant fails to do so, then the Court will overrule the objections and require further responses as to the above indicated responses. To justify any refusal to provide privileged information, Defendant will also have to supply a privilege log. (CCP § 2031.240(c).)

As to Defendant's first objection

based on cumulative, duplicative, and undue burden, Defendant asserts that Plaintiff seeks the same documents and information Plaintiff previously requested in the related action entitled John Handal v. L.A. Wellness Center, LASC Case No. 26SMCV01314. Even assuming that Defendant produced similar videos and documents, the Court does not find this objection to be valid under the circumstances. This case regards a separate 30-day notice, distinct from the 3-day notice served in that other action. Thus, the Court would not find the information sought here to be unreasonably cumulative or duplicative. Defendant would need to show an undue burden in light of the time spent gathering such information. Based on the nature of the requests, it is unlikely that Defendant will be able to show that gathering this information will be burdensome.

While Defendant must still justify

the objections at the hearing, the Court is inclined to sustain the privilege objections as to RPD nos. 17-21. Those RPDs request information concerning Defendant's communications with Katchko, Vitiello & Karikomi, PC (a law firm) concerning process and other issues in this case. These requests therefore would likely seek only privileged information. Therefore, Defendant probably raises a valid privilege objection as to those RPDs.

Accordingly, absent a further

showing by the parties, the Court is inclined to grant the motion, in part, as to nos. 3, 4, 7, 9-14, 16, and 22-25. Defendant is ordered to provide further responses, as well as production, within 5 days.

Mandatory sanctions are imposed against

Defendant and its counsel of record in the reduced total amount of \$1,460.00. Sanctions are payable to Plaintiff's counsel of record within 30 days.